

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: May 26, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Schakel vs. MLM Distributors, Inc. 30-2025-01529975	<u>Demurrer</u> Defendant Flowers Foods, Inc.'s Demurrer to Plaintiff's Complaint is SUSTAINED with 15 days leave to amend as to the 1st through 3rd Causes of Action and OVERRULED as to the 4th through 12th Causes of Action. If Plaintiff Sanjuana Schakel does not amend the First Amended Complaint within the period of time stated above, Defendant Flowers Foods, Inc. shall file an answer or other pleading in response to the remaining causes of action of the First Amended Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j.)) <u>Pending Motion</u> Defendant Flowers Foods, Inc. (Defendant Flowers) demurs to the entire First Amended Complaint (FAC) filed by Plaintiff Sanjuana Schakel and to each of the 1st through 12th Causes of Action of the FAC. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.)
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		However, “where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents.” (<i>Jimenez vs. Mrs. Gooch’s Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a.)) <u>Joint Employer</u> Defendant contends that the entire FAC fails because Plaintiff failed to adequately plead that Defendant Flowers was Plaintiff’s employer. However, the following allegations, when read liberally and in context, are sufficient to plead that Defendant Flowers had a joint employer relationship with Plaintiff: • In May 2018, Plaintiff was hired “to drive routes that [Defendant MLM Distributors Inc. (Defendant MLM)] received per its contract with FLOWERS, while at all times working out of FLOWERS’ warehouse located at 7311 Doig Drive in Garden Grove, California 92841. As part of her duties as a driver, Plaintiff loaded and unloaded boxes of bread, made an average of eleven (11) delivery stops per day, and delivered approximately forty-five (45) to sixty (60) trays of bread at each stop. Plaintiff also stocked bread products in each store she serviced.” (FAC, ¶ 23.) • “On a day-to-day basis, FLOWERS exercised control and direction over [Defendant MLM’s] employees’ work, including Plaintiff’s work. . . . FLOWERS’
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		employees, including via its manager, TYLER, supervised Plaintiff and [Defendant MLM's] other employees, dictated their hours worked, their breaks, their overtime opportunities and, thus, their income. [Defendant MLM's] employees, including Plaintiff, reported to, and received work from, FLOWERS and its manager, TYLER, while working out of FLOWERS' facility. Where guidance was needed or problems needed solving, FLOWERS' managers, including TYLER, provided such to . . . Plaintiff." (FAC, ¶ 24.) • "Thus, at all times, FLOWERS dictated the working conditions and expectations of the work of [Defendant MLM's] employees, including Plaintiff, as well as making decisions as to pay, hours worked, duties, discipline, supervision, and even whether an employee of [Defendant MLM], including Plaintiff, would be hired or fired from their work performed for FLOWERS' benefit." (<i>Ibid.</i>) • "[I]n addition to that joint employment relationship, [Defendant MLM] and FLOWERS consistently delegated to each other, depending on the occasion, various [HR] decisions as to Plaintiff and their other collective employees, including as authorized business-entity agents under the [FEHA]. As a result of such delegation to each other as authorized business-entity agents, both [Defendant MLM] and FLOWERS were, at all times, an employer of Ms. Schakel and other employees as defined under <i>Government Code</i> §12925(d.)" (<i>Id.</i>, ¶ 25, italics original.) • "Throughout Plaintiff's employment with Defendant and FLOWERS, one of their employees, DANIEL, consistently engaged in harassing conduct toward Plaintiff based on her race, national origin, and/or ethnicity. Some, among many, of DANIEL's harassing comments include the following: 'I hate Mexicans,' 'fucking Mexicans,' 'fucking beaners,' and 'go back to your country.'" (<i>Id.</i>, ¶ 26.) • "In response to the harassing comments made by DANIEL, Plaintiff often complained
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		about such unlawful harassment to Defendant and FLOWERS, including FLOWERS’ managing agents. Despite these repeated complaints, Defendant and FLOWERS, each and jointly, failed to take any remedial or corrective action, generally ignoring Plaintiff altogether.” (<i>Id.</i>, ¶ 27.) • After Plaintiff made these complaints about harassment, “Defendant and FLOWERS began targeting Plaintiff as acts of retaliation against Plaintiff. Specifically, Defendant and FLOWERS slowly but surely reduced Plaintiff’s work assignment until, eventually, there was no work provided at all.” (<i>Id.</i>, ¶ 28.) The FAC adequately alleges that Defendant Flowers had indirect control over the terms and conditions of Plaintiff’s employment, including that Plaintiff reported to and received assignments from Flowers’ manager “Tyler”; that Plaintiff worked out of Defendant Flowers’ facility; that human resources responsibilities were delegated to Defendant Flowers, including hiring and firing decisions; and that Defendant Flowers had indirect control and/or authority to retaliate and affect Plaintiff’s schedule. These allegations, which the court must take as true, are sufficient to support joint employer liability on the part of Defendant Flowers. (See <i>Raines v. U.S. Healthworks Medical Group</i> (2023) 15 Cal.5th 268, 273 [“[A]n employer’s business entity agents can be held directly liable under FEHA for employment discrimination in appropriate circumstances when the business-entity agent has at least five employees and carries out FEHA-regulated activities on behalf of an employer.”]; <i>Medina v. Equilon Enterprises, LLC</i> (2021) 68 Cal.App.5th 868, 880 [“[An entity’s] strict control and ability to terminate the Member and close down the Hotel at their discretion was indirect control over plaintiff and the employees.”]; <i>Jimenez v. U.S. Continental Marketing, Inc.</i> (2019) 41 Cal.App.5th 189, 192, 200–201 [joint employment of temporary agency workers when employer exercises sufficient control over working conditions].) <u>1st Cause of Action</u>
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		"One form of employment discrimination is harassment on the basis of race or national origin. To establish a prima facie case of a racially hostile work environment, Thompson was required to show that (1) he was a member of a protected class; (2) he was subjected to unwelcome racial harassment; (3) the harassment was based on race; (4) the harassment unreasonably interfered with his work performance by creating an intimidating, hostile, or offensive work environment; and (5) the Department is liable for the harassment." (<i>Thompson v. City of Monrovia</i> (2010) 186 Cal.App.4th 860, 876, citations omitted, quoting <i>Aguilar v. Avis Rent A Car System, Inc.</i> (1999) 21 Cal.4th 121, 129.) Here, Defendant Flowers contends that the FAC does not sufficiently plead that it was liable for the harassment because there is no allegation that Defendant Flowers or its employees harassed Plaintiff. The FAC alleges that Defendant Daniel Aguilera is the only person who harassed Plaintiff: Throughout Plaintiff's employment with Defendant and FLOWERS, one of their employees, DANIEL, consistently engaged in harassing conduct toward Plaintiff based on her race, national origin, and/or ethnicity. Some, among many, of DANIEL's harassing comments include the following: "I hate Mexicans," "fucking Mexicans," "fucking beaners," and "go back to your country." (FAC, ¶ 26.) Statutory causes of action must be pleaded with particularity. (<i>Covenant Care, Inc. v. Superior Court</i> (2004) 32 Cal.4th 771, 790.) Thus, a plaintiff "must set forth factual allegations that sufficiently state all required elements of [a] cause of action . . . and, [a]llegations must be factual and specific, not vague or conclusory." (<i>Rakestraw v. Cal. Physicians' Serv.</i> (2000) 81 Cal. App. 4th 39, 43.) Here, the FAC fails adequately plead with particularity that Defendant Flowers was responsible for Defendant Daniel Aguilera's conduct.
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		Therefore, the court will sustain the demurrer to the 1st Cause of Action. <u>2nd Cause of Action</u> To state a claim for retaliation under the California Fair Employment and Housing Act ("FEHA"), a plaintiff must allege that (1) she engaged in protected activity; (2) the employer subjected her to an adverse employment action; and (3) there is a causal link between the protected activity and the adverse action. (<i>Soldinger v. Northwest Airlines, Inc.</i> (1996) 51 Cal. App. 4th 245, 367.) Defendant Flowers contends that the FAC fails to adequately allege that Plaintiff engaged in protected activity and that there is a causal link between the protected activity and adverse action. Given that this is a statutory cause of action, Plaintiff cannot rely on vague and conclusory allegations. For example, Plaintiff fails to allege when she made complaints; to whom such complaints were made; the substance of the complaints; and how the complaints were communicated to Defendant Flowers. Thus, the court will sustain the demurrer to the 2nd Cause of Action. <u>3rd Cause of Action</u> The Fair Employment and House Act (FEHA) provides that it is an unlawful employment practice: "(k) For an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring." (Gov. Code, § 12940, subd. (k).) Section 12940(k) "creates a separate actionable tort enforceable upon the establishment of the usual tort elements of duty of care, breach of duty (a negligent act or omission), causation, and damages." (<i>Dickson v. Burke Williams, Inc.</i> (2015) 234 Cal.App.4th 1307, 1313.) Such a claim requires a plaintiff to prove: (1) he or she was an employee; (2) subject to
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		harassment/discrimination/retaliation in the course of employment; (3) the employer failed to take all reasonable steps to prevent the harassment/discrimination/retaliation; (4) the plaintiff was harmed; and (5) the employer's failure to take all reasonable steps to prevent harassment/ discrimination/retaliation was a substantial factor in causing the plaintiff's harm. (See CACI 2527.) Thus, a cause of action for failure to prevent discrimination or harassment is contingent upon a viable claim of discrimination or harassment. (<i>Dickson v. Burke Williams, Inc., supra</i>, 234 Cal.App.4th at p. 1314.) In light of the fact that Plaintiff has failed to make out a viable cause of action for harassment and retaliation against Defendant Flowers, the court will sustain the demurrer to the 3rd Cause of Action. <u>4th Cause of Action</u> "The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (<i>Garcia-Brower v. Premier Auto. Imports of CA, LLC</i> (2020) 55 Cal. App. 5th 961, 973.) Defendant Flowers argues that the FAC fails to allege that Defendant Flowers was Plaintiff's employer and that Defendant Flowers terminated Plaintiff. For the reasons set forth above, the FAC sufficiently pleads a joint employer relationship between Plaintiff and Defendant Flowers. Further, the FAC asserts that "In or around April 2025, following Plaintiff's latest complaints of harassment, [Defendant MLM] and FLOWERS committed their final act of retaliation by wrongfully terminating Plaintiff." (FAC, ¶ 29.) Accordingly, the court will overrule the demurrer to the 4th Cause of Action.
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		<u>5th through 11th Causes of Action</u> Defendant Flowers contends that the FAC fails to plead that Defendant Flowers was Plaintiff's employer and/or that Defendant Flowers was responsible for paying Plaintiff's wages or providing meal and rest breaks to Plaintiff. However, for the reasons set forth above, the FAC sufficiently alleges a joint employer relationship between Plaintiff and Defendant Flowers. The FAC also alleges that an employer is responsible for paying wages and providing meal and rest breaks to its employees, and that both Defendant MLM and Defendant Flowers failed to do so. (See FAC, ¶¶ 72-74, 79-80, 84-86, 91-99, 102-105, 109-114, 117-120.) Therefore, the court will overrule the demurrer to the 5th through 11th Causes of Action. <u>12th Cause of Action</u> Defendant Flowers asserts that this cause of action is derivative of the causes of action alleging Labor Code violations and fails with them. However, the court has overruled the demurrer to the causes of action alleging Labor Code violations. Therefore, the FAC's PAGA claim is still viable. Defendant Flowers also contends that Plaintiff failed to provide online written notice to the Labor and Workforce Department Agency prior to asserting this cause of action. However, the FAC alleges that notice was given to the LWDA. (See FAC, ¶¶ 125-126). Thus, the court will overrule the demurrer to the 12th Cause of Action. <u>Leave to Amend</u> "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.)
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		However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance. Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, Plaintiff requests leave to amend and has not had a prior opportunity to amend in response to the court's ruling on a demurrer. Therefore, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer or motion to strike, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].)
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		<u>Motion to Strike</u> Defendant Flowers Foods, Inc.’s Motion to Strike Plaintiff’s Complaint is GRANTED with 15 days leave to amend. If Plaintiff Sanjuana Schakel does not amend the First Amended Complaint within the period of time stated above, Defendant Flowers Foods, Inc. shall file an answer or other pleading in response to the remaining causes of action of the First Amended Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j.)) <u>Pending Motion</u> Defendant Flowers Foods, Inc. (Defendant Flowers) moves to strike allegations related to and the prayer for relief for punitive damages from First Amended Complaint (FAC) filed by Plaintiff Sanjuana Schakel. <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where
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		complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) However, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).) "In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Striking Punitive Damages</u> To obtain punitive damages, a plaintiff must plead and prove one of the following: malice, oppression, or fraud. (See Civil Code, § 3294, subd. (a).) "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civil Code, § 3294, subd. (a)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civil Code, § 3294, subd. (a)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civil Code, § 3294, subd. (a)(3).) In order to survive a motion to strike, a complaint must not only allege in general terms oppression, fraud, or malice, but also plead ultimate facts in
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		support. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim."], citations omitted.) Conduct carried on with a willful and conscious disregard of the rights or safety of others, but that is not "despicable," will not support an award of punitive damages. (<i>College Hospital Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 725.) "Despicable conduct" refers to circumstances that are so vile, base, or contemptible that it would be looked down on and despised by reasonable people. (<i>Ibid.</i>; <i>Scott v. Phoenix Schools, Inc.</i> (2009) 175 Cal.App.4th 702, 715.) Such conduct has been described as "having the character of outrage frequently associated with crime." (<i>Scott v. Phoenix Schools, Inc.</i>, <i>supra</i>, 175 Cal.App.4th at p. 715.) "Consequently, to establish malice, 'it is not sufficient to show only that the defendant's conduct was negligent, grossly negligent or even reckless.'" (<i>Bell v. Sharp Cabrillo Hospital</i> (1989) 212 Cal.App.3d 1034, 1044, quoting <i>Flyer's Body Shop Profit Sharing Plan v. Ticor Title Ins. Co.</i> (1986) 185 Cal.App.3d 1149, 1155.) "The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages. . . . Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210, citations and quotation marks omitted.) Discriminatory conduct that was harassing or retaliatory has been found to be sufficient to support punitive damages. (See <i>Roby v. McKesson Corp.</i> (2009) 47 Cal.4th 686, 713 [strict attendance policy that did not reasonably accommodate persons with disabilities could support jury award of punitive damages]; <i>Wysinger v. Automobile Club of Southern California</i> (2007) 157 Cal.App.4th 413, 428 [corporate policy that reduced compensation for
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		older managers after employee filed an EEOC complaint could support jury award of punitive damages].) However, the court has determined that the FAC does not state viable causes of action for harassment, retaliation, or failure to prevent harassment and retaliation. Further, to recover punitive damages against an employer defendant based on the acts of its employee, the plaintiff must plead facts showing that the employer "had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or [wrongful] act must be on the part of an officer, director, or managing agent of the corporation." (Civil Code, § 3294, subd. (b).) "[I]n performing, ratifying, or approving the malicious conduct, the agent must be acting <i>as the organization's representative</i>, not in some other capacity." (<i>College Hospital Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 723, italics original.) This "concept assumes that such individual was <i>acting in a corporate or employment capacity</i> when the conduct giving rise to the punitive damages claim against the employer occurred." (<i>Ibid.</i>, italics original; see also <i>CRST, Inc. v. Superior Court</i> (2017) 11 Cal.App.5th 1255, 1261-1262 [punitive damages may be awarded against employer under theory of vicarious liability].) The FAC does not sufficient plead that officers, directors, or managing agents of Defendant Flowers engaged in, authorized, or ratified the policy that supports an award punitive damages. The court will grant the motion to strike. <u>Leave to Amend</u> In ruling on a motion to strike, the court employs the same liberality to amend as used for demurrers. As long as there is a reasonable possibility that plaintiffs can cure the defects, leave to amend is appropriate. (See <i>Grieves v.</i>
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		<i>Superior Court</i> (1984) 157 Cal.App.3d 159, 168; <i>Price v. Dames & Moore</i> (2001) 92 Cal.App.4th 355, 360.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, Plaintiff requests leave to amend and has not had a prior opportunity to amend in response to the court's ruling on a motion to strike. Therefore, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer or motion to strike, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an
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		opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.”].) Defendant Flowers shall give notice of these rulings.
2	Phan vs. Fountain Valley Regional Hospital and Medical Center 30-2025-01500005	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion to Furnish Security</u> Defendants Francoise Raiola, M.D.’s and Romana Bailey, M.D.’s Motion for Order Requiring Vexatious Litigant Plaintiff, Tin Quoc Phan, to Furnish Security in the Amount of \$12,863.79 within 60 Days of Court Order is GRANTED. Defendants Francoise Raiola, M.D.’s and Romana Bailey, M.D.’s Request for Judicial Notice at Hearing on Motion for Order Requiring Vexatious Litigant Plaintiff, Tin Quoc Phan, to Furnish Security in the Amount of \$12,863.79 within 60 Days of Court Order is GRANTED as to Exhibits A-H. (See Evid. Code, § 452, subd. (d).) Plaintiff Tin Quoc Phan is ORDERED to post an undertaking or bond, or furnish security, in the amount of \$12,863.79 within 60 days of receiving notice of this ruling. Plaintiff Tin Quoc Phan is ORDERED to file and serve a notice of undertaking, bond, or furnishing of security and attach evidence of the undertaking, bond, or furnishing of security within 60 days of receiving notice of this ruling. If Plaintiff Tin Quoc Phan fails to abide by the court’s orders, Defendants Francoise Raiola, M.D. and Romana Bailey, M.D. may move <i>ex parte</i> for dismissal pursuant to Civil Procedure Code section 391.4. <u>Furnishing Security</u> Code of Civil Procedure section 391.1 states that: In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the

		court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant. (Code Civ. Proc. § 391.1, subd. (a).) Code of Civil Procedure section 391.3 further provides that: (a) Except as provided in subdivision (b), if, after hearing the evidence upon the motion, the court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix. (b) If, after hearing evidence on the motion, the court determines that the litigation has no merit and has been filed for the purposes of harassment or delay, the court shall order the litigation dismissed. This subdivision shall only apply to litigation filed in a court of this state by a vexatious litigant subject to a prefiling order pursuant to Section 391.7 who was represented by counsel at the time the litigation was filed and who became in propria persona after the withdrawal of his or her attorney. (c) A defendant may make a motion for relief in the alternative under either subdivision (a) or (b) and shall combine all grounds for relief in one motion. (Code Civ. Proc., § 391.3.)
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		In addition, “[w]hen security that has been ordered furnished is not furnished as ordered, the litigation shall be dismissed as to the defendant for whose benefit it was ordered furnished.” (Code Civ. Proc., § 391.4.) Here, Plaintiff was declared a vexatious litigant on October 22, 2025, in the related case, <i>Phan Tin Quoc v. Fountain Valley Regional Hospital</i>, Orange County Superior Court Case Number 30-2023-01337174. Plaintiff was also declared a vexatious litigant on October 27, 2025, in <i>Tin Quoc Phan v. County of Orange</i>, Orange County Superior Court Case Number 30-2025-01496640. Further, there is no reasonable probability that Plaintiff will prevail in this action. Plaintiff’s claims are barred by the one-year statute of limitations under Code of Civil Procedure section 340.5. In addition, Plaintiff cannot establish that Defendants Francoise Raiola, M.D. and Romana Bailey, M.D. owed him a duty of care or engaged in wrongful conduct causing him the injury alleged in the Complaint. Therefore, the court will grant the motion to furnish security.
3	Ydens Holdings, LLC vs. Mobix Labs, Inc. 30-2026-01555400	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Applications for Right to Attach Order and Temporary Protective Order</u> Plaintiffs Ydens Holdings LLC’s, Robert Ydens’, and Julie Ydens’ Application for Right to Attach Order, Temporary Protective Order, and Order for Issuance of Writ of Attachment as to Defendant EMI Solutions, LLC is DENIED. Plaintiffs Ydens Holdings LLC’s, Robert Ydens’, and Julie Ydens’ Application for Right to Attach Order, Temporary Protective Order, and Order for

		Issuance of Writ of Attachment as to Defendant Mobix Labs, Inc. is GRANTED. The court finds that California law governs these applications and that even if the motion to compel arbitration is granted, the court may still grant provisional remedies. (See <i>World Wide Imports, Inc. v. Bartel</i> (1983) 145 Cal.App.3d 1006, 1012 [“It is well-established that while the courts generally enforce the substantive rights created by the laws of other jurisdictions, the procedural matters are governed by the law of the forum.”]; Code Civ. Proc., § 1281.8, subd. (b).) In addition, there is no dispute that the parties entered into the Merger Agreement, which provides for a set amount of cash consideration, and that \$522,500.01 in cash consideration remains unpaid. The claim is one upon which an attachment may be issued in a readily ascertainable amount. Plaintiffs have established the probability of prevailing on their claim in the amount of \$522,500.01 against Defendant Mobix, but not Defendant EMI because Defendant EMI was not obligated to pay the cash consideration under the Merger Agreement. Plaintiffs shall give notice of this ruling.
4	Flannigan vs. Dolder 30-2024-01450681	<u>Motion for Leave to Amend</u> Plaintiff Terence Flannigan’s Motion to Amend the Complaint is DENIED without prejudice. <u>Pending Motion</u> Plaintiff Terence Flannigan moves for leave to amend the Complaint. <u>Standard for Leave to Amend (Upon Motion of a Party)</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a

		mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.) With respect to the first requirement, “[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.” (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, “[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to
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	a wholly distinct and different legal obligation against the defendant." (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) With respect to the second requirement, prejudice that may support denying amendment includes "delay in trial, loss of critical evidence, or added costs of preparation." (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) However, pursuant California Rules of Court rule 3.1324, a motion to amend a pleading must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) In addition, California Rules of Court rule 3.132 requires that a separate declaration accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).) In this case, Plaintiff has not complied with the requirements of Rule 3.132. For example, Plaintiff did not file or submit a copy of the proposed amended complaint, did not state what allegations are proposed to be deleted or added to the original Complaint, and did not file a declaration identifying the effect of the amendment or the other information required. Without these documents, the court is unable whether and which facts or legal theories are being changed, and what prejudice, if any, the defendant(s) will face as a result of the amendment.
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		Therefore, the court will deny the motion without prejudice to the Plaintiff refiling this motion with the proper submissions. The court clerk shall give notice of this ruling.
5	Ferron vs. Lucidi Construction, Inc. 30-2022-01268483	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion to Modify the Appellate Record</u> Defendant Hall's Decking Coating, Inc.'s Motion to Modify Designation of Record Filed By Plaintiff is DENIED. <u>Pending Motion</u> Defendant Hall's Deck Coating, Inc. (Defendant Hall's) moves the modify the designation of record filed by Plaintiff Melissa S. Ferron in connection with Plaintiff's appeal of this action. <u>Modifying the Appellate Record</u> The California Rules of Court provide that "[u]nless the superior court orders otherwise on a motion . . ., this rule governs if: (A) The appellant elects to use an appendix under this rule in the notice designating the record on appeal under rule 8.121." (Cal. Rules of Court, rule 8.124(a)(1).) On March 4, 2026, Plaintiff and Appellant Melissa S. Ferron filed a Notice Designating Record on Appeal indicating that she was choosing to use an appendix under Rule 8.124. (See ROA #1041.) Defendant Hall's has not shown good cause to override Plaintiff's election to proceed by appendix. Plaintiff's Counsel has represented that the appendix will consist of accurate copies of documents in the Superior Court file and intends to comply with his obligations to provide accurate copies. (See Decl. of Brian P. Worthington in Opp'n to Def. Hall's Mot. to Modify Designation of Record Filed by Pltf., ¶ 3.)

		Defendant argues that the complicated procedural history of this litigation makes preparation of the appendix difficult and time-consuming. However, Plaintiff's Counsel has provided evidence that he will be able to undertake preparing such a complicated appendix. (See <i>id.</i>, ¶¶ 2-6.) Plaintiff has the right to elect whether to use a clerk's transcript or an appendix. No good cause has been shown to deprive Plaintiff of this right. The court will deny the motion. Plaintiff shall give notice of this ruling.
6	Hodgson vs. Haase 30-2024-01393270	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion to Strike</u> Defendant Kenneth Craig Haase's Motion to Strike Portions of Plaintiff's Original Complaint is DENIED. Defendant Kenneth Craig Haase seeks to strike "improper, irrelevant, and legally defective allegations and requests for relief contained in Plaintiff's Original Complaint." (Mot. to Strike Portions of Pltf.'s Original Compl. at p. 2:3-4). "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. Rules of Court, rule 3.1322.) Here, Defendant notice of motion to strike fails to identify the paragraphs and/or causes of action of the Complaint that he wishes to strike. Without this information, Plaintiff cannot adequately respond to the motion to strike and the court cannot determine whether and which portions of the Complaint are "improper, irrelevant, and/or legally defective." The court will deny the motion to strike.

		<u>Motion for Joinder of Party</u> Defendant Kenneth Craig Haase’s Motion to Compel Joinder of Necessary and Indispensable Parties is DENIED. Defendant Kenneth Craig Haase moves to join Compass Real Estate and Stephanie Cismoski as defendants in this action. The Civil Procedure Code provides that more than one person may be joined as plaintiffs in an action if: (1) They assert any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action; or (2) They have a claim, right, or interest adverse to the defendant in the property or controversy which is the subject of the action. (Code Civ. Proc., § 378, subd. (a).) Similarly, more than one person may be joined as defendants in an action if: (1) Any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action; or (2) A claim, right, or interest adverse to them in the property or controversy which is the subject of the action. (Code Civ. Proc., § 379, subd. (a).) “Sections 378 and 379 address the permissive joinder of plaintiffs and defendants, respectively.” (<i>Countrywide Home Loans, Inc. v. Superior Court</i> (1999) 69 Cal.App.4th 785, 797.)
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		In addition to permissive joinder, the Civil Procedure Code also provides for mandatory joinder of necessary or indispensable parties: (a) A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party. (Code Civ. Proc., § 389, subd. (a).) Nonjoinder of a party must be raised by demurrer or answer at the outset of the action, or the objection is waived. (See Code Civ. Proc., § 430.80.) As long as the objection has been raised as a defense in the answer, defendant may move the court any time prior to trial for an order compelling the joinder of the absent party. (See Code Civ. Proc., 389(a).) Here, Defendant did not raise the issue of joinder of parties on demurrer and Defendant's Answer does not raise this issue as an affirmative defense, and has waived the objection. (See ROA #54.) Further, Defendant has delayed in bringing up this motion until the eve of trial and has not provided an explanation for his delay. In any case, the Complaint alleges a cause of action for breach of contract and common counts. Plaintiff alleges that she prepaid Defendant \$65,000 for one year of rent, but that Defendant failed to deliver the possession of the premises or refund Plaintiff's money. Plaintiff seeks relief against Defendant Haase only.
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		Defendant fails to show good cause of joinder under Section 379. Defendant also fails to show that complete relief cannot be afforded to Plaintiff without Compass Real Estate and Stephanie Cismoski, or that any of the conditions laid out Section 389 exist here. The court will deny the motion for joinder of parties. <u>Motion for Jury Trial</u> Defendant Kenneth Craig Haase's Motion for Jury Trial is GRANTED. Defendant Kenneth Craig Haase is ORDERED to comply fully and strictly with Orange County Superior Court Local Rule 317 prior to the Jury Trial. Defendant Kenneth Craig Haase is ORDERED to post jury fees for 50 jurors for 3 days of jury voir dire and for 15 jurors for 7 days of trial within 30 days of this ruling. If Defendant Kenneth Craig Haase fails to abide by the court's orders above, that shall be taken as a waiver of the right to a jury trial. Defendant Kenneth Craig Haase moves for a jury trial of this action. The right to a jury trial is guaranteed by California's Constitution. (Cal. Const. Art. I, 16.) However, a party may waive that right, however, by failing to assert a demand for a jury trial and/or by failing to timely pay jury fees. (See Code Civ. Proc., § 631, subd.s (a)-(b).) Nevertheless, even if a statutory waiver has occurred under section 631(a), "the court may, in its discretion upon just terms, allow a trial by jury although there may have been a waiver of a trial by jury." (Code Civ. Proc., § 631, subd. (g).) "In exercising such discretion, courts are mindful of the requirement 'to resolve doubts in interpreting the waiver provisions of section 631 in favor of a litigant's right to jury trial.'" (<i>Tesoro del Valle Master Homeowners Ass'n v. Griffin</i> (2011) 200 Cal.App.4th 619, 638.)
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		"A trial court abuses its discretion as a matter of law when '. . . relief has been denied where there has been no prejudice to the other party or to the court from an inadvertent waiver.'" (<i>Ibid.</i>) Here, the trial in this case has been continued to July 13, 2026. Thus, the parties still have sufficient time to prepare for a jury trial instead of a bench trial. Any prejudice to Plaintiff of preparing for a jury trial is outweighed by the prejudice to Defendant of losing the right to a jury trial. At the same time, Plaintiff has offered evidence that Defendant has refused to engage in an issues conference until six days before trial and has refused to cooperate in preparing and filing the documents necessary for a jury trial, including a joint statement of the case, proposed jury instructions, joint exhibit list, or proposed verdict forms. (See Decl. of Joseph A. Ferrucci re Defendant's Failure/Refusal to Comply with Local Rule 317, ¶¶ 5-9.) Therefore, the court will order that Defendant comply fully with Local Rule 317 and post jury fees for the trial, or risk waiving the right to a jury trial. The court will grant the motion for a jury trial upon the conditions stated. <u>Motion for Leave to Amend</u> Defendant Kenneth Craig Haase's Motion for Leave to File Amended Answer is DENIED. The Answer of Kenneth Craig Haase to Plaintiff's First Amended Complaint (ROA #235) is ORDERED STRICKEN. Defendant Kenneth Craig Haase moves for leave to file an amended answer. Defendant contends that an amended answer is necessary because Plaintiff filed a first amended complaint "that expanded and reframed allegations against me." (Decl. of Kenneth Craig Haase, ¶ 2.)
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		However, the court has yet to grant Plaintiff leave to file a first amended complaint. Rather, the court continued the hearing on Plaintiff's motion for leave to amend to file a First Amended Complaint to July 27, 2026. (See ROA #246.) Therefore, there is no need for Plaintiff to file an amended answer at this time. If Plaintiff is granted leave to file a first amended complaint, Defendant will have the right at that time to file an answer to the new operative pleading. Further, pursuant California Rules of Court rule 3.1324, a motion to amend a pleading must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) The motion for leave to amend is procedurally defective in that it does not include a copy of the proposed amended answer and does not state what allegations are proposed to be deleted or added to the original Answer. The court notes that Defendant filed an unauthorized answer (ROA # 235) to Plaintiff's first amended complaint (which has not been filed). The court, on its own motion, strikes the unauthorized answer. The court will deny the motion to amend. Plaintiff shall give notice of these rulings.
7	Sahel Oncology LLC vs. Blank Rome LLP 30-2025-01518179	<u>Motion to Compel Arbitration</u> There is no full written tentative ruling at this time. The court will hear from the parties or their counsel, who should be ready to address the issue

		of whether an evidentiary hearing is required to determine whether the parties entered into an agreement to arbitrate.
8	Ascencio vs. Akbarzadeh 30-2023-01362017	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion to Be Relieved as Counsel</u> Counsel Lili Jalali, Esq.'s Motion to Be Relieved As Counsel – Civil for Defendant Aidin Akbarzadeh is DENIED without prejudice. This court previously continued the hearing in this matter to allow Counsel Lili Jalali, Esq. (Counsel) to supplement the previous declaration, which was deficient in that no facts were provided showing that address where Defendant Akbarzadeh was served was his current address, or his last known address and Counsel has not been able to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. Counsel did not file a supplemental declaration until the court day before this hearing and the supplemental declaration does not address the deficiencies. The court will deny the motion without prejudice to Counsel refiling the motion when Counsel is able to comply with all the requirements of the Civil Procedure Code and Rules of Court. The court clerk shall give notice of this ruling.
9	Dilawari vs. California Department of Motor Vehicles 30-2025-01536742	<u>Petition for Writ of Mandate</u> There is no full written tentative ruling at this time. The court will hear from the parties or their counsel.

10	Pillon vs. Root 30-2025-01476852	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion for Leave to File Cross-Complaint</u> Defendant Mark Root’s Motion for Leave to File Cross-Complaint is GRANTED. Defendant Mark Root shall file the Cross-Complaint and serve it upon all named Cross-Defendants within 30 days of this ruling. <u>Standard for Leave to File Cross-Complaint</u> Code of Civil Procedure Section 426.50 provides that A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action. (Code Civ. Proc., § 426.50.) There is a liberal policy regarding granting leave to file cross-complaints. (See <i>Align Technology, Inc. v. Bao Tran</i> (2009) 179 Cal.App.4th 949, 967; Weil & Brown, Cal. Prac. Guide, Civ. Proc. Before Trial (The Rutter Group 2022) ¶ 6:557.) If the proposed cross-complaint is permissive, a party may file a cross-complaint “at any time before the court has set a date for trial.” (Code Civ. Proc., § 428.50, subd. (b).) However, if a party fails to file a permissive cross-complaint before the date set for trial, the party “shall obtain leave of court to file any cross-complaint,” which may be granted “in the interests of justice.” (Code Civ. Proc., § 428.50(c).)
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		On the other hand, if the proposed cross-complaint is compulsory, leave must be granted so long as defendant is acting in good faith. (Code Civ. Proc., § 426.50; Weil & Brown, Cal. Prac. Guide: Civ. Proc. before Trial (The Rutter Group 2022) ¶ 6:555.) A compulsory cross-complaint is a cross-complaint that is asserted against the plaintiff and related to the subject matter of the complaint. (Code Civ. Proc., § 426.30.) A cross-complaint is “related” to the complaint if it arises out of the same transaction, occurrence, or series of transactions or occurrences as the complaint. (Code Civ. Proc., § 426.10(c).) All other cross-complaints are permissive cross-complaints. In order to be related, there does not need to be “an absolute identity of factual backgrounds for the two claims, but only a logical relationship between them.” At the heart of this approach is the question of duplication of time and effort; i.e., are any factual or legal issues relevant to both claims?” (<i>Currie Medical Specialties, Inc. v. Bowen</i> (1982) 136 Cal.App.3d 774, 777, citations omitted, quoting <i>United Artists Corp. v. Masterpiece Prods.</i> (2d Cir. 1955) 221 F.2d 213, 216.) Claims that are only loosely related in that they involve some of the same parties and the same matter, directly or indirectly, are not logically related if the trial of the claims does not involve a duplication of time and effort due to the fact that there are factual and legal issues that are relevant to both claims. (See <i>ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd.</i> (2016) 5 Cal.App.5th 69, 84.) Cross-complaints for equitable indemnity are virtually always transactionally related to the complaint that has been filed in the main action. (<i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39.) This is because “[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.)
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		Here, the proposed Cross-Complaint asserts causes of action for 1) implied indemnity and total indemnity and 2) declaratory relief and apportionment of fault. The Complaint alleges Defendant made repairs to a water line and negligently cause a significant leak of water onto Plaintiff's property, causing structural and other damage. The proposed Cross-Complaint alleges that Cross-Defendant Robert Pilon made repairs to the water line and may have been negligent, contributing to Plaintiff's own damages. Accordingly, the proposed Cross-Complaint is compulsory. However, even if the cross-complaint were permissive, the court would grant leave to amend doing so will not interfere with a trial date or unduly prejudice any other parties to this action. Plaintiff's opposition requests that the court to bifurcate the trial of the Cross-Complaint from the trial of the Complaint. This request is not properly before the court although Plaintiff may move separately for bifurcation if he wishes to do so. Defendant shall give notice of this ruling.
11	Cliq, Inc. vs. Capital Managers, LLC 30-2021-01220754	<u>Motions for Attorney's Fees and to Strike and/or Tax Costs</u> There is no full written tentative ruling at this time. The court will hear from the parties or their counsel, who shall be ready to address whether the court should refer the motions for attorney's fees and to strike and/or tax costs to a referee pursuant to Civil Procedure Code section 639. <u>Motion to Amend Judgment</u> Plaintiff Cardflex, Inc. d/b/a Cliq's Motion to Amend Judgment for Civil Code § 3287(b) Discretionary Interest is DENIED as moot. The motion is moot in light of the court's ruling denying discretionary prejudgment interest pursuant to Civil Code section 3287(b).

